

Networks that bridge tradition and humanism in sharia

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Write a concise, self-contained article entry for the title: "Networks that bridge tradition and humanism in sharia".

Overall topic for alignment: Intellectual networks shaping humanistic trends in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:
- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

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****Respond in English****

SUMMARY

Sharia, divine Islamic guidance, has been continually reinterpreted through scholarly networks that harmonize sacred texts with humanistic values. Quranic principles of mercy and justice were systematized into *maqasid al-sharia* (higher objectives: protection of religion, life, intellect, progeny, property, later expanded to freedom and dignity), a framework developed by Maliki jurists across al-Andalus and North Africa. Classical Sunni schools crafted flexible tools: Hanafi *istihsan* (juristic preference) prioritized equity; Maliki *maslaha mursala* (public interest) anchored law in community wellbeing; Shafi'i and Hanbali scholars embedded *maqasid* and adaptive reasoning, with Ibn Qayyim advocating rulings that evolve with time and circumstances. In minority contexts, *fiqh al-aqalliyyat* (minority jurisprudence) emerged through networks like the European Council for Fatwa and Research, using necessity and public interest to reconcile fidelity with citizenship. In majority states, reformist networks leveraged intra-Islamic pluralism—e.g., Moroccan family law reforms drew on Maliki, Hanafi, and human rights discourses. Orientalist scholarship, though reductive, spurred historically conscious *ijtihad* among modern reformers. Human rights initiatives evolved from the restrictive 1990 Cairo Declaration to the 2016 Marrakesh Declaration, which invoked *maqasid* and the Charter of Medina to champion religious minorities. AI now computationally maps historical patterns of humanistic reasoning across fatwas, further enabling data-driven, tradition-rooted interpretations. These networks reveal that humanistic sharia is a perennial dynamic, continuously bridging revelation and human dignity.

FULL CONTENT

Introduction

The term *sharia* (شريعة), often translated as “Islamic law,” refers to the divine pathway guiding believers towards justice, mercy, and worship. Far from a monolithic code, sharia has always been interpreted through vibrant intellectual networks—circles of scholars, jurists, and theologians who mediate between the sacred texts and the human condition. These networks have consistently sought to harmonize traditional norms with humanistic values: dignity, compassion, and the common good. This article traces how such networks have bridged tradition and humanism across centuries, from classical juristic schools to contemporary debates on minority rights, orientalist scholarship, artificial intelligence, and human rights declarations.

Quranic Foundations and the *Maqasid*

The humanistic potential of sharia is rooted in the Quran itself. Repeated divine attributes such as *al-Rahman* (the Most Merciful) and *al-Adl* (the Just) underscore a moral universe oriented towards human welfare. Key verses lay a foundational ethos: “We have not sent you except as a mercy to all the worlds”

(Quran 21:107) and “God commands justice, the doing of good, and liberality to kith and kin” (16:90). These principles were systematised through the doctrine of *maqasid al-sharia* (مقاصد الشريعة), the higher objectives of the law, classically defined by Abu Ishaq al-Shatibi as the protection of religion (*din*), life (*nafs*), intellect (*aql*), progeny (*nasl*), and property (*mal*). Later thinkers expanded these to include freedom (*hurriyya*) and human dignity (*karama*). The *maqasid* framework itself emerged from a trans-regional network of Maliki jurists in al-Andalus and North Africa, demonstrating how cross-pollination of ideas between Cordoba, Fez, and Cairo could generate a humanistic lens that prioritises spirit over letter.

The Classical Schools and Their Humanistic Tools

By the ninth century, four major Sunni juristic schools (*madhahib*, sing. *madhhab*) had crystallised, each with a distinctive methodology for applying reason to revelation. These schools were not isolated; they grew through extensive teacher–student networks spanning Baghdad, Medina, Kufa, Damascus, and beyond, often overlapping with theological currents such as the Ash‘ari and Maturidi schools that affirmed a robust role for human reason and ethical intuition.

- The **Hanafi** school, rooted in Iraq, championed *istihsan* (استحسان)—juristic preference—whereby a jurist departs from strict analogy (*qiyas*) to avoid hardship or injustice, effectively putting equity at the centre of legal decision-making. This allowed Hanafi jurists to develop flexible commercial laws and to recognise customary practices (*‘urf*) that served community well-being.
- The **Maliki** school, anchored in Medina, elevated *maslaha mursala* (مصلح مرسلة), the unregulated public interest, as an independent source of law. The Maliki concept of *‘amal ahl al-Madina* (the practice of the people of Medina) further showed a communal, empirically grounded approach that balanced tradition with lived human realities, particularly in matters of governance and family law.
- The **Shafi‘i** school, systematised by al-Shafi‘i, placed rigorous emphasis on *qiyas* (analogical reasoning) while also accepting *istislah* (seeking the public good) under strict conditions. Al-Shafi‘i’s legal theory network linked Hijaz and Egypt, creating a methodology that, despite its formalism, allowed scholars like al-Ghazali to embed *maqasid* as an evaluative filter.
- The **Hanbali** school, often viewed as most literalist, also harboured a strong tradition of *maslaha*, most famously articulated by Ibn Taymiyya and his student Ibn Qayyim al-Jawziyya. They argued that wherever the texts suggest severity, a deeper reading in light of *rahma* (mercy) can reveal facilitative rulings—a principle Ibn Qayyim called *taghayyur al-fatwa bi-taghayyur al-azmina wa-l-ahwal* (changing of a fatwa with changing times and circumstances).

These methodological tools—*istihsan*, *maslaha*, *‘urf*, and a dynamic view of *ijtihad* (independent reasoning)—were the engines by which scholarly networks kept sharia responsive to human needs.

Minority and Majority Settings

The adaptability of sharia is particularly visible in the contrast between Muslim-majority societies and Muslim-minority contexts. A distinct field, *fiqh al-aqalliyyat* (فقه الأقليات, jurisprudence for minorities), emerged in the late twentieth century through networks like the European Council for Fatwa and Research, led by scholars such as Yusuf al-Qaradawi and Tariq Ramadan. Its core premise is

that the objectives of sharia—preserving faith, life, and dignity—may require rulings that depart from classical majority-oriented positions when Muslims live as minorities. For example, scholars have invoked *darura* (necessity) and *maslaha* to facilitate mortgages in non-Islamic banking environments or to permit diverse forms of political participation that safeguard communal interests. This network weaves together graduates of al-Azhar, Indian Deobandi seminaries, and Western universities, producing fatwas that explicitly balance textual fidelity with modern citizenship and humanistic integration.

In majority settings, humanistic networks have pushed for legal reforms rooted in intra-Islamic pluralism. The Moroccan Moudawwana (family code) reforms of 2004, for instance, were justified by a royal commission that drew upon Maliki *maslaha*, Hanafi *istihsan*, and universal human rights discourse, illustrating how a state-level network of scholars and civil-society actors can re-codify sharia in a more egalitarian direction. Similarly, Indonesia’s Muhammadiyah and Nahdlatul Ulama have fostered networks of gender-just interpretations (*qira’ah mubadalah*) using *maqasid* to reinterpret inheritance and marriage laws.

Orientalist Perspectives

Western academic engagement with sharia, often labelled “orientalism,” has a complex dual legacy. Scholars like Ignaz Goldziher and Joseph Schacht employed historical-critical methods that challenged the immutability of classical doctrine, arguing that much of early Islamic law was shaped by social practice and administrative exigency. While their approaches were sometimes reductive, they also created a trans-cultural dialogue. Reformist Muslim thinkers—from Muhammad Abduh in Egypt to Fazlur Rahman in Pakistan—engaged with orientalist findings to advocate for a historically conscious *ijtihad*, one that could distil the ethical spirit of the Quran while relativising medieval juristic rulings. Thus, a global network of academics, spanning Leiden, Cairo, and Chicago, contributed indirectly to the humanistic rethinking of sharia, even as post-colonial critics rightly cautioned against orientalist assumptions of Western superiority.

The Human Rights Nexus

The tension between sharia and universal human rights declarations has generated some of the most intense humanistic networking. The 1990 Cairo Declaration on Human Rights in Islam, issued by the Organisation of Islamic Cooperation, affirmed rights but ultimately subjected them to sharia as defined by classical interpretations, drawing criticism for failing to guarantee equality for women and religious minorities. In response, a new generation of scholar-activists—such as Sudanese legal theorist Abdullahi An-Na’im—began bridging international human rights law with a reformist sharia. An-Na’im, a student of Mahmoud Mohamed Taha, proposes a hermeneutic that reverses the traditional doctrine of *naskh* (abrogation), elevating the universalistic Meccan verses over the more historically specific Medinan ones, thereby extracting a sharia of inherent freedom, equality, and compassion. The 2016 Marrakesh Declaration, signed by hundreds of Muslim scholars and leaders, explicitly used *maqasid* and historical examples of pluralism—like the Charter of Medina—to advocate for the rights of religious minorities in Muslim-majority countries. Such declarations represent the crystallisation of interconnected networks of jurists, human rights advocates, and theologians committed to a humanism rooted in tradition.

AI's Humanistic Approach to Sharia

A novel dimension is emerging at the intersection of artificial intelligence and sharia. Computational tools—natural language processing, machine learning on corpora of classical *fiqh*—allow researchers to identify patterns of legal reasoning across thousands of fatwas and rulings. Algorithms can highlight where jurists historically favoured public interest over strict textualism, effectively mapping *istihsan* and *maslaha* across time and schools. AI-driven platforms, such as the digital fatwa archives of Dar al-Ifta al-Misriyya, enable users to query rulings while algorithms flag multiple school positions, often with preference for those aligned with contemporary humane values. Scholars in networks like the Computational Islamic Law group are using AI not to replace jurists but to provide data-driven insights that empower humanistic *ijtihad*—showing, for instance, that a majority of pre-modern rulings on a certain penalty actually emphasised repentance and forgiveness over punishment. This “humanistic AI” reveals the inner diversity of sharia, creating a cyber-network that connects lay Muslims, technologists, and muftis in a new form of collective deliberation that bridges tradition and modern ethical sensibilities.

Conclusion

From the study circles of classical Baghdad to the digital fatwa banks of today, intellectual networks have continuously navigated the space between the immutable sacred text and the changing human landscape. The tools of *maqasid*, *maslaha*, *istihsan*, and *ijtihad* are themselves the products of scholastic networks that valued mercy and justice as intrinsic to divine law. In minority contexts, *fiqh al-aqalliyyat* reimagines sharia to serve dignity in diaspora; in majority states, cross-school collaborations reshape family law. Orientalism, despite its flaws, sparked a global exchange that enriched reformist thought. Human rights declarations and the Marrakesh initiative show networked scholars insisting that sharia and universal rights can cohere. Even artificial intelligence now joins the conversation, exposing the historical depth of humanistic reasoning within the tradition. Together, these networks demonstrate that a humanistic sharia is not a modern imposition but a perennial dynamic, a bridge built by countless minds committed to both revelation and the human good.

SEGMENTED DATA (2)

Introduction

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